

IN THE DISTRICT COURT OF LANCASTER COUNTY, NEBRASKA

STATE OF NEBRASKA, Case No. SYNTH-CR-25-002  
Plaintiff,

vs.

Alexandria Montgomery Example, **MOTION TO SEAL AN**  
(your full name) Defendant. **ADULT CRIMINAL RECORD**

I am the defendant in the above-listed case.

I request this court enter an Order sealing the criminal record of this case.

I am stating the following facts in support of this Motion:

1. I was charged with  
Synthetic other offense  
\_\_\_\_\_ on  
(Crime(s) Charged)

01/10/2025  
(Date of charge(s))

2. All charges against me in this matter (select one):  
☐ Were dismissed;  
☐ Resulted in an acquittal;  
☐ Resulted in a conviction that was later pardoned; or  
☒ Resulted in a conviction that was later set aside because I was a  
victim of sex trafficking.
3. The information related to the charge(s) listed above still appears in the  
public record.

I request that the court enter an Order sealing my above conviction.

Signature: \_\_\_\_\_ Date: \_\_\_\_\_

Printed Name: Alexandria Montgomery Example

Street Address/P.O. Box: 9876 Synthetic Long Residence Lane

City/State/ZIP Code: Lincoln, NE 68508

Telephone Number: 402-555-0142

\*Email address: \_\_\_\_\_

\*[Nebraska Supreme Court Rule § 2-208](#) requires individuals who are not attorneys and representing themselves to provide their email address. The court will use the email address to send notices from the court about this case **except** for items that require another type of service as directed by statute or Nebraska Supreme Court Rule.

If you no longer have email capability or if your email or other contact information changes, you must complete a [Change of Contact Information Form](#).

☒ By checking this box, I am letting the court know that I do not have the ability to receive emails. The reason I cannot receive email is: No internet access

\_\_\_\_\_

# In-camera hearing guidance

## Hearing privacy request

Prepared for Alexandria Montgomery Example. The supplied first-stage election requests an in-camera hearing. Under Sec. 29-3005(6), on the movant's request a hearing on that motion must be held in camera. The rules of evidence do not apply at that hearing. This does not make all filed papers automatically confidential and does not state a privacy rule for the later sealing hearing.

Before submitting sensitive material, confirm with the court the procedure for protected filing and the accepted execution of any supporting factual account. Avoid unnecessary graphic detail or identifying information about others. This guidance is not an assurance of secrecy.

# Safety and advocacy handoff

## Safety and advocacy support

Prepared for Alexandria Montgomery Example. Consider working with a trafficking-survivor advocate or legal-aid attorney to prepare the account and supporting material. You control the facts you provide. Seek support if preparing or receiving case papers creates a safety concern.

Use safe contact information the court can accept. Ask about any protected-contact or sensitive-filing procedure before filing. Do not disclose a location that puts you at risk without discussing a safe alternative with the court or an advocate. Do not rely on a later sealing order to protect papers while the case is pending.

# Nebraska staged filing guide

## Use only the current stage

Prepared for Alexandria Montgomery Example, case SYNTH-CR-25-002. This is the later adult sealing packet. Your supplied facts state that the court already granted a trafficking-related set-aside for every charge in this case and that the record still appears publicly. Check the actual signed order and court file before signing CC 6:12.

The two stages are separate filings. Ask the clerk for the signed set-aside order after it is granted. Only then request the adult sealing motion. Juvenile adjudications require the separate juvenile mechanism and cannot use adult CC 6:12.

## Check the facts and obtain supporting records

Confirm the offense and charge date against the court file and Nebraska State Patrol criminal-history report. Request the report through [nebraska.gov](http://nebraska.gov). Confirm conviction and sentence completion dates. Do not substitute the conviction date for the charge date. Correct discrepancies before signing.

For the first motion, verify the selected prostitution-related or other-offense statutory branch and the supplied basis and account. A prostitution-related offense may qualify where committed while the person was a trafficking victim or where participation was proximately caused by that status. For an other offense, the basis is direct result or proximate cause. Do not sign an inaccurate account.

Government documentation is not required to seek relief. Section 29-3005(4) also identifies affidavits or sworn testimony from attorneys, clergy, medical professionals, trained victim-services professionals or other professionals from whom you sought relevant assistance. Other sufficiently credible and probative evidence may be considered. The presumption concerns victim status, not every element of relief.

## Required before filing and actual execution

**REQUIRED\_BEFORE\_FILING:** Review and complete your victimization account and obtain appropriate supporting material. Confirm with the original court its accepted execution procedure for the supporting account, including any oath or affidavit requirement. Do not treat the printed narrative as sworn testimony or an executed affidavit.

**REQUIRED\_BEFORE\_FILING:** For the first-stage motion, confirm with the actual convicting court the local filing and scheduling procedure, any prosecutor notice or service, who performs it, recipient, method, timing and any required notice or proof. Follow those directions and complete any resulting required component before filing. The later sealing clerk-notice procedure is not an instruction for the first stage.

**REQUIRED\_BEFORE\_FILING:** Personally sign and date only the motion for your current stage, after reviewing it. Dates and signatures remain blank for actual execution. Confirm any filing fee, payment procedure and applicable fee-waiver request with the clerk; a fee is not established in the adopted route. Fee waiver is available in principle under Neb. Rev. Stat. Sec. 25-2301.01.

**REQUIRED\_BEFORE\_FILING for sealing:** Obtain the actual signed trafficking set-aside order; compare its case, coverage and basis to your answers. Do not file if the prior order, all-charge coverage or continued public appearance is unconfirmed.

## File and follow up

File the first-stage motion in the court of conviction. For this adult sample the supplied caption is DISTRICT Court, LANCASTER County. After relief is granted, file CC 6:12 in the sentencing court. For adult sealing the court notifies the county or city attorney and schedules the matter; do not complete a certificate for an act you have not performed. Keep the signed orders and check that public records are updated after sealing. A set-aside alone is not sealing.

## Synthetic review sample

These sample facts are fictional and must not be filed. The court decides whether to grant relief. Use your actual reviewed facts when preparing a filing.